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Verisure Sverige AB

Decision following supervision under the
Data Protection Regulation – Verisure
Sverige AB

Decision of the Swedish Authority for Privacy Protection

The Swedish Authority for Privacy Protection (IMY) finds that Verisure Sverige AB (556153-2176) has processed personal data in violation of Article 32.1 of the Data Protection Regulation¹ during the period from April 20, 2022, to August 2022 by failing to take appropriate measures to ensure a suitable level of protection for personal data in the form of images from cameras in private individuals' homes. IMY issues a reprimand to Verisure Sverige AB under Article 58.2 b of the Data Protection Regulation for the identified violation.

Overview of the supervisory case

Background

The Swedish Authority for Privacy Protection (IMY) has taken note of information in the media which claims that employees of Verisure Sverige AB (hereinafter "Verisure" or "the company") have shared images from cameras in private individuals' homes among themselves in connection with incoming alarms without justification. IMY has therefore initiated supervision of Verisure to investigate the company's internal handling of image material from cameras installed in customers' homes.

Following the initiation of supervision, IMY received tips regarding Verisure's technical and organizational security measures. Verisure has been given the opportunity to comment on this.

What has emerged in the case

Verisure has stated the following, among other things.

Regarding the information in the media

The company has taken the media reports very seriously and has allocated significant resources to investigate the allegations in the relevant newspaper article. However, Verisure distances itself from the information in the media as nothing in the company's extensive internal investigation indicates that there would be room for such processing of image material as described or that similar processing actually occurs. The internal investigation has included interviews with employees and former employees, a technical review of log data to check if image material has been handled in a deviant manner, a review of the alarm operators' chat groups, and an examination of the technical limitations in the company's system to identify any deficiencies that could enable improper processing of the image material. The company's internal investigation has also involved a review of the list of handled cases regarding requests for access to records in accordance with the Data Protection Regulation, as well as an examination of compliance with the applicable data protection regulations and the internal regulations. Furthermore, the internal investigation has included a review of the data protection-related training initiatives that the company conducts for new employees and in ongoing work.

The results of the internal investigation show that there is no evidence that improper sharing of personal customer information has occurred in the manner described in the media. In the internal investigation, Verisure could not find any evidence or otherwise anything suggesting ongoing or current violations of the internal regulations. The company also has an established whistleblower channel that has been used by employees in other contexts, but there are no reported incidents indicating that improper processing of image material has been reported through that channel.

Had the allegations in the media been true, there would have been no legal basis for such obviously unlawful processing of personal data.

Regarding Verisure's handling of personal data from customers' cameras otherwise

Verisure is an authorized alarm center, which imposes extensive regulatory requirements on the operation. Verisure takes its responsibility as a data controller very seriously and works systematically with privacy and data protection issues to safeguard the interests of the data subjects. Customer privacy is an integral and crucial part of Verisure's operations. The company has, among other things, a comprehensive internal regulatory framework in the form of guidelines and procedures.

The company's internal policy clearly states how alarm operators are allowed to handle image material and in which situations they may view the images or ask a colleague to view them. As a privacy-enhancing measure, Verisure has also implemented detailed instructions regarding how the cameras may be installed to avoid risking violations of personal privacy. Verisure has also implemented technical limitations that ensure that image material is only processed if it is necessary to achieve the purpose of the processing.

The image material is accessible to authorized personnel in the company's system for a certain period; thereafter, it is automatically deleted from the system but archived for an additional period, among other things, for the need to share images with law enforcement authorities. Verisure has assessed that the period for which the image material is stored is sufficiently long for the company to retain the image files while still being able to fulfill the company's purpose of processing, taking into account the clear privacy interest. For example, there may be a need to follow up on how a certain incident has been handled or to respond to customer inquiries about a certain incident that requires access to image material.

All image views in the company's system are logged. It is technically impossible to access the image material without it being logged. This means that if there is no log of

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Regarding the handling of images in the system, Verisure can confidently state that there has been no access. The fact that all handling of image material is logged allows for the investigation of unauthorized access to the material.

As a general rule, image material should not be exported from Verisure's system. However, there are exceptions where Verisure is entitled to share images, which allows for the possibility of exporting images in specific cases. This function is subject to access restrictions and actions are logged, making it possible to trace how an image has been shared.

Verisure can only investigate misconduct of the kind alleged in the media for a certain period in the past, as image material is deleted from the system in accordance with the company's automatic retention routines. However, log data in the form of the images' file names has been retained for a slightly longer period, namely 100 days, before these data are also deleted. With this information, Verisure has been able to check how many times a certain operator has opened an image. Since August 2022, an adjustment of the retention period for log data has occurred. The adjustment means that all log data, except for images, is stored for five years. The adjustment regarding the retention period for log data is partly a result of the need to be able to investigate image handling over a longer period in the past.

Regarding the tips

Concerning the first tip received by IMY about login credentials, the information largely does not align with Verisure's understanding. There have been good reasons for the current use of a certain type of login credentials, and the procedure has been designed with consideration of relevant data protection legislation. The use has also been ongoing for a limited time and has now been discontinued.

Regarding the two other tips, Verisure is not considered the data controller for the described processing activities. In one tip, one of Verisure's franchisees, also a data processor, has clearly acted outside of their instructions, and that company is therefore to be regarded as the data controller for the

relevant incident. Although Verisure is not the data controller for the current processing, the company has taken the tip very seriously and acted accordingly. Verisure has, among other things, assisted the relevant franchisee in investigating the incident described in the tip. The second tip concerns another company.

Scope of IMY's examination in the matter

The General Data Protection Regulation contains a large number of rules that must be followed in connection with the processing of personal data. Within the framework of this supervisory matter, IMY does not review all rules and issues that may arise in Verisure's operations.

IMY's examination in the matter has been limited to encompass the personal data processing described in the media and to assess to what extent the company has taken appropriate technical and organizational measures to protect the personal data of the company's customers in the internal handling of image material in accordance with Article 32 of the General Data Protection Regulation.

Justification of the decision

Applicable provisions

The data controller is, according to Article 4.7 of the General Data Protection Regulation, a natural or legal person, public authority, institution, or other body that alone or jointly with others determines the purposes and means of the processing of personal data.

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together with others determines the purposes and means for the processing of personal data.

According to the principle of accountability in Article 5.2 of the General Data Protection Regulation (GDPR), the data controller shall be responsible for compliance with the principles described in the first paragraph of the article, including the security principle (Article 5.1 f of the GDPR). The principle of accountability has been further developed in Article 24, which states that the data controller shall implement appropriate technical and organizational measures to ensure and be able to demonstrate that the processing is performed in accordance with the GDPR.

Article 28.10 of the GDPR states that if a data processor infringes this regulation by determining the purposes and means of processing, the data processor shall be considered a data controller with respect to that processing, without affecting the application of Articles 82, 83, and 84.

According to Article 32.1 of the GDPR, the data controller shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk of the processing. In assessing which technical and organizational measures are appropriate, the data controller shall take into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing as well as the risks to the rights and freedoms of natural persons.

According to Article 32.1, appropriate protective measures, where appropriate, include

- a) pseudonymization and encryption of personal data,
- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services,
- c) the ability to restore the availability and access to personal data in a timely manner in the event of a physical or technical incident, and
- d) a procedure for regularly testing, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.

According to Article 32.2 of the GDPR, in assessing the appropriate level of security, special consideration shall be given to the risks posed by the processing, in particular from accidental or unlawful destruction, loss, or alteration, or from unauthorized disclosure of or access to personal data that has been transmitted, stored, or otherwise processed.

Data Controller

Data Controller in the tips

Verisure has stated that the company is the data controller for the personal data processing that the first tip regarding login credentials has concerned, which is supported by the investigation in the

matter. IMY assesses that Verisure is the data controller for that processing in the sense intended in Article 4.7 of the GDPR.

Regarding the two other tips, Verisure has asserted that the company is not the data controller for the described processing. Concerning one of the tips

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The Swedish Data Protection Authority (IMY) assesses that, in light of the nature of the personal data processing referred to in the tip, there are no grounds to question that the processing has gone beyond the instructions given to the data processor, and that Verisure is therefore not to be considered as the data controller. Regarding the second tip, IMY notes that there are no grounds to question that another company is the data controller for that processing. IMY therefore assesses that Verisure is not the data controller for the processing referred to in these two tips, and thus these processing activities are not covered by the continued examination in this decision.

Data Controller in Other Respects

Verisure has stated that the company is the data controller for the processing of personal data in the form of image material within the framework of the company's incident management. Verisure has also stated that the company is jointly responsible with the customer for the monitoring that the customer conducts by using Verisure's monitoring function in their home, yard, and other private buildings.

According to Verisure, despite this, the company is to be considered as the sole data controller regarding that processing if the so-called private exception in Article 2.2(c) of the General Data Protection Regulation (GDPR) is applicable to the customer. This is because the customer's processing of personal data in that case falls outside the scope of the GDPR.

What Verisure has stated is supported by the other evidence in the case. IMY therefore assesses that Verisure is the data controller for the relevant personal data processing in the sense referred to in Article 4.7 of the GDPR.

Tip Regarding Login Credentials

The tip alleges that Verisure has used a certain type of login credentials in a manner that could violate the GDPR. However, in light of what Verisure has stated regarding the use of the relevant login credentials and what has otherwise emerged in the investigation, IMY cannot identify any deficiencies in relation to the GDPR.

The Alleged Handling of Images in the Media

In the media reporting that IMY reviewed before the supervision of Verisure commenced, it was claimed that employees at Verisure shared information about images of partially clothed individuals among themselves and that several employees accessed the images through the company's alarm management system for entertainment purposes. The relevant news article also claimed that images could be sent between employees, including in a chat program.

IMY notes that the processing of image material described in the media is very serious and could represent a significant intrusion into individuals' personal privacy. Such processing would, as Verisure has also stated, lack a legal basis under Article 6 of the GDPR and thus be unlawful. However, in order to establish a deficiency under the GDPR, it must be clear that the processing of image material described in the media has occurred.

Verisure has accounted for the internal investigation that the company has undertaken to investigate the claims in the media and has stated that nothing has emerged in the investigation that indicates that the handling of image material has occurred in the manner described in the media.

IMY notes that Verisure has conducted a comprehensive internal investigation to examine the alleged handling of image material. The company's internal investigation has not shown that

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what has been alleged in the media has occurred. It has also not been demonstrated through IMY's investigation in the matter that what has been described in the media has taken place. IMY therefore assesses that the investigation in the matter does not support the claim that Verisure has failed to comply with the General Data Protection Regulation in the manner described in the media.

Verisure has not taken appropriate security measures

In light of what has emerged from the investigation in the matter, IMY finds reason to examine whether Verisure has taken appropriate measures to ensure a level of protection that is suitable based on the risks associated with the processing.

The processing has involved significant privacy risks and required a high level of protection

The data controller must ensure a level of security that is appropriate based on the risks associated with the processing. The assessment of an appropriate level of protection should be made taking into account, among other things, the nature, scope, context, and purpose of the processing, as well as the risks, of varying degrees of probability and severity, to the rights and freedoms of natural persons. In the assessment, special consideration should be given to the risks posed by the processing, including unauthorized disclosure of or unauthorized access to personal data.

IMY notes that Verisure, in its operations, handles personal data from a large number of data subjects.² IMY further notes that this concerns an alarm management service where cameras installed in private individuals' homes are part of that service. The processing of personal data that occurs in this context thus includes, among other things, the collection and handling of image material consisting of individuals in their home environment. This is a highly privacy-sensitive processing. Furthermore, it can be noted that individuals who are customers of Verisure have engaged the company for safety and security purposes and rely on the fact that the cameras installed in their homes are used solely by Verisure to ensure this purpose. Thus, it concerns the processing of personal data for which the data subjects have legitimate expectations of a high degree of confidentiality and robust protection against unauthorized and unlawful processing. This type of personal data processing also occurs within the framework of Verisure's core business, which entails even higher demands for the level of protection. Considering, among other things, that the data Verisure has processed has been of a privacy-sensitive nature and has involved a large number of individuals, the company's processing of personal data has overall posed a high risk to the rights and freedoms of natural persons. The nature, scope, and context of the processing have thus resulted in a requirement for a high level of protection for the data. The measures must, among other things, ensure that personal data is protected against unauthorized disclosure and unauthorized access.

The data has not been adequately protected

IMY will then assess whether Verisure has ensured the high level of protection that is required. To maintain the security of the personal data processed in a business's systems, it is fundamental to have control over what happens and what has happened to the data. The data subject also has a right to access their personal data and information about how the data has been processed. For the data subject to exercise this right and thereby, among other things, be able to verify the legality of the processing, it is fundamental that the

² According to Verisure's website, the company has approximately 500,000 Swedish customers, see Verisure, "About Us."

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The data controller has control over how the data is processed or has been processed.³ This can, for example, occur through logging.

The investigation in the matter shows that the image material is stored for a predetermined period and is then deleted from the system. After this period, it is not possible to trace operators' handling of individual images. However, within the framework of image management, other data closely related to image handling is logged for a somewhat longer period. Before August 2022, log data in the form of the images' file names was stored for a total of 100 days. This log data allows for the verification of how many times a certain operator has opened an image.

Regarding the storage period for Verisure's log data, IMY makes the following assessment. Image material from customers' cameras in the home is, as previously noted, associated with a significant privacy interest. In light of this, as well as the purposes of the processing that Verisure has described and what the company has otherwise stated, IMY considers that the time Verisure stores the image material is proportionate.

However, there are other less privacy-sensitive log data that can be used to ensure that image material is not handled improperly and thereby ensure that personal data is protected against unauthorized disclosure and unauthorized access. Log data in the form of the images' file names is such log data that can be used to trace how many times a certain image has been opened in the system. According to Verisure, however, this log data has only been stored for 100 days, which has made it impossible to trace any improper handling of image material after this period. Considering the high level of protection required for personal data, IMY assesses that the current storage period for log data concerning the images' file names has been too short to adequately protect the data against unauthorized disclosure or unauthorized access and to ensure the confidentiality of the personal data processed in their system.

IMY therefore assesses that Verisure has not taken appropriate technical and organizational measures to ensure a level of security that is appropriate in relation to the risk of the processing. The reason for this is that Verisure has not stored log data concerning the images' file names long enough to be able to trace any improper handling of personal data in the form of image material from customers' cameras. Through this, Verisure has also lacked the ability to adequately ensure the protection of the registered individuals' rights.

However, within the framework of a general review of storage periods during IMY's supervision, Verisure has implemented a new storage period for the images' file names, which means that log data concerning the file names has been stored for five years since August 2022. Verisure has stated that the adjustment of the storage period for the file names is partly a result of the need to investigate image handling over a longer period in the past. Through this adjustment, IMY considers that Verisure has not been in breach of the General Data Protection Regulation in the manner described above since August 2022.

Within the framework of this supervision, Verisure has also accounted for other technical and organizational security measures that the company has taken to protect customers' personal data during the internal handling of image material. In light of what

3 Cf. Court of Justice of the European Union ruling Pankki S, C-579/21, EU:C:2023:501, paragraphs 37-83.

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Verisure has stated in this regard that IMY finds no evidence other than that the other protective measures appear to be appropriate.

Overall, IMY assesses that Verisure has processed personal data in violation of Article 32.1 of the General Data Protection Regulation. The investigation in the matter indicates that the limited retention period for the relevant log data has existed at least since the initiation of the supervision on April 20, 2022, until August 2022. IMY therefore assesses that Verisure has processed personal data in violation of the General Data Protection Regulation during the period from April 20, 2022, to August 2022.

Choice of Intervention

Article 58.2 and Article 83.2 of the General Data Protection Regulation state that IMY has the authority to impose administrative fines in accordance with Article 83. Depending on the circumstances of the individual case, administrative fines may be imposed in addition to or instead of the other measures referred to in Article 58.2, such as orders and prohibitions. Furthermore, Article 83.2 specifies the factors to be considered when deciding whether administrative fines should be imposed and when determining the amount of the fine. If it concerns a minor infringement, IMY may, as stated in Recital 148, instead of imposing a fine, issue a reprimand in accordance with Article 58.2 b. Consideration shall be given to aggravating and mitigating circumstances in the case, such as the nature, severity, and duration of the infringement as well as previous relevant infringements.

In assessing the choice of intervention, IMY considers the following. IMY has determined that Verisure has violated Article 32.1 of the General Data Protection Regulation by not having stored log data regarding the file names of images long enough during the period from April 20, 2022, to August 2022 to be able to investigate any mishandling of personal data and thereby ensure that personal data was protected against unauthorized disclosure and unauthorized access. A violation of that provision may lead to an administrative fine.

Image material containing individuals in their home environment is highly sensitive personal data. Unauthorized disclosure or access to such personal data poses a high risk to the rights and freedoms of the data subjects. Verisure has lacked the ability to investigate any mishandling of personal data further back in time than 100 days, which means there is a risk that unauthorized disclosure or access may have occurred without Verisure being able to control this and take any appropriate measures. However, Verisure has, within the framework of an internal review, among other things to enable the investigation of image handling further back in time, changed the retention period for the relevant log data so that they are now stored for five years. This was done, admittedly, after IMY initiated the current supervision, but it means that Verisure has thus remedied the deficiency. Furthermore, the identified deficiency in itself did not mean that personal data has been processed unlawfully but concerns the ability to retrospectively verify the processing of the data.

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IMY finds, upon a comprehensive assessment of the circumstances in the case, that it concerns a minor infringement in the sense referred to in Recital 148, and there is reason to refrain from imposing an administrative fine on Verisure for the identified infringement. Verisure shall therefore, based on Article 58.2 b of the General Data Protection Regulation, instead be given a reprimand for the identified infringement.

This decision has been made by the unit manager Jenny Bård after presentation by the department lawyer Sarah Bodlander. In the final handling of the case, department lawyer Andreas Persson and IT and information security specialist Petter Flink have also participated.

Jenny Bård

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Data Protection Officer

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How to Appeal

If you wish to appeal the decision, you should write to IMY. Indicate in the letter which decision you are appealing and the change you are requesting. The appeal must be received by IMY within three weeks

from the day you were informed of the decision. If you are a party representing the public interest, the appeal must be received within three weeks from the day the decision was announced. If the appeal has been submitted in a timely manner, IMY will forward it to the Administrative Court in Stockholm for examination.

You may email the appeal to IMY if it does not contain any sensitive personal data or information that may be subject to confidentiality. The authority's contact details are provided on the first page of the decision.